PLENARY

AS TO THE ADMISSIBILITY OF

Application No. 17525/90
by Mark DELAZARUS
against the United Kingdom

The European Commission of Human Rights sitting in private on 16 February 1993, the following members being present:

MM. S. TRECHSEL, Acting President
J.A. FROWEIN
F. ERMACORA
G. JÖRUNDSSON
A. WEITZEL
J.-C. SOYER
H.G. SCHERMERS
H. DANELIUS
Mrs. G. H. THUNE
Sir Basil HALL
MM. F. MARTINEZ
C.L. ROZAKIS
Mrs. J. LIDDY
MM. J.-C. GEUS
M.P. PELLONPÄÄ
B. MARXER
G.B. REFFI

Mr. H.C. KRÜGER, Secretary to the Commission

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 8 January 1990 by Mark DELAZARUS against the United Kingdom and registered on 5 December 1990 under file No. 17525/90;

Having regard to:

- reports provided for in Rule 47 of the Rules of Procedure of the Commission;



- the observations submitted by the respondent Government on 7 February 1992 and the observations submitted by the applicant on 29 April 1992 and 20 January 1992;

- the hearing of the parties on 16 February 1993;

Having deliberated;

Decides as follows:

THE FACTS

The applicant is a citizen of the United Kingdom, born in 1968, who at the time of lodging his application was detained in HM Prison Swaleside, Kent. He is represented before the Commission by Mr. T.

Bancroft, Solicitor with Messrs. John Copland & Son, Solicitors, Sheerness, Kent.

The facts of the present case, as submitted by the parties, may be summarised as follows:

A. The particular circumstances of the case

On 13 June 1989 the applicant was convicted at Southwark Crown Court of wounding with intent to cause grievous bodily harm and assault on a police officer. He had several previous convictions for criminal offences and was sentenced to 3 years 3 months' imprisonment. He was received at HM Prison Wandsworth on 13 June 1989.

On 25 August 1989 the applicant was involved in a serious incident in the prison. It was alleged that, armed with a razor blade embedded in a pencil, he attempted to take a female probation officer hostage. The attempt failed due to the intervention of another prisoner. The applicant was placed in the Segregation Unit overnight on the authority of the prison Governor. The following day, he was charged before the Governor with a disciplinary offence contrary to Prison Rule 47(22). The Governor had before him a written statement from the probation officer giving a full account of the incident. He also had before him two statements by prison officers, neither of whom had witnessed the incident. One officer had overheard an incriminating conversation between the applicant and another prisoner shortly after the incident and the other had come on the scene shortly after the incident and found the weapon used. Given the serious nature of the allegation, the Governor adjourned the disciplinary charge and referred the matter to the police with a view to prosecution in the criminal courts. On 23 September 1989 the police informed the Governor that they did not intend to prosecute the applicant. The Governor therefore re-opened the disciplinary proceedings and decided to refer the matter to the prison Board of Visitors, on the grounds that the charge was sufficiently serious that if the applicant were found guilty, his powers of punishment would be insufficient.

The Board of Visitors considered the matter on 4 October 1989. At this hearing the applicant applied for and was granted legal representation. The hearing was therefore adjourned to a date to be fixed in order for the applicant and the Governor to instruct their legal representatives. On 28 November the Governor's legal representative advised him that there was insufficient evidence to proceed with the charge, as the probation officer concerned was not prepared to give evidence, apparently because she felt her position of independence within the prison would be compromised by being seen to give evidence against a prisoner on behalf of the Governor. It appears that the prisoner witness to the incident was also unwilling to give evidence against a fellow prisoner. In those circumstances, the Governor was advised to offer no evidence. The adjourned hearing of the charge before the Board of Visitors was therefore arranged for 30 November 1989. The Governor offered no evidence against the applicant and the Board of Visitors formally dismissed the charge.

The applicant was also the subject of separate disciplinary proceedings relating to another incident of violence shortly before the alleged hostage-taking incident. He was charged with assaulting a prison officer by head-butting him in the chest on 17 August 1989. This charge was dealt with by the Board of Visitors on 14 September. The applicant pleaded guilty and was awarded 56 days' loss of remission.

The applicant was located in the Segregation Unit at HM Prison Wandsworth from 25 August 1989 (the date of the alleged hostage-taking incident) until 5 December 1989 (5 days after his case was dismissed by the Board of Visitors). The segregation was initially authorised

by the Governor pursuant to Prison Rule 48(2), which authorises the segregation of prisoners, who are to be charged with an offence against discipline, pending adjudication. Although this power would arguably permit segregation until the final determination of a disciplinary charge (i.e. in this case the Board of Visitors' hearing on 30 November 1989) internal prison guidance states that the power should normally only be used pending the Governor's initial hearing (i.e. in this case 26 August 1989).

From 26 August, the applicant's segregation was authorised under Prison Rule 43 which permits removal from association where it appears desirable to the Governor for the maintenance of good order or discipline. At the relevant time Rule 43 provided that the Governor's decision on segregation was to be authorised by a member of the Board of Visitors within 24 hours. Internal guidance provided that authority could initially be obtained by telephone. Although there is no evidence that such authority was given in this case, it was normal practice at HM Prison Wandsworth at the time to obtain such authority. Written authorisation from a member of the Board of Visitors was obtained on 31 August 1989. Minutes of the Board of Visitors' meetings reveal that the applicant's continued segregation pursuant to Rule 43 was authorised by them at their meetings on 21 September, 19 October and 16 November 1989.

The solicitors representing the applicant in the disciplinary proceedings (Messrs. Birnbergs) wrote to the Governor on 2 November 1989 querying the need for the applicant's continued segregation under Rule 48(2). The Governor replied on 7 November giving the impression that the applicant was still being segregated under that Rule because of the serious nature of the charge against him. He also stated that efforts were being made to transfer the applicant to another prison where he could be on normal location, but more closely supervised than was possible at HM Prison Wandsworth outside the Segregation Unit. Efforts by the prison authorities to transfer the applicant to an alternative prison were not successful.

The applicant also contacted his Member of Parliament, Mr. David Evennett, about the fact and conditions of his segregation. Mr. Evennett wrote to the Governor on 15 November and received an erroneous reply dated 1 December 1989 giving the date of commencement of segregation as 18 September (rather than 25 August) and giving the impression that disciplinary proceedings were still pending, whereas they had in fact been dismissed the previous day. Again the reason for the applicant's segregation was expressed to be the seriousness of the allegation against him in pending disciplinary proceedings.

Whilst the applicant was removed from association in the Segregation Unit he was not allowed to communicate or associate with any other inmates in the prison. As a result he was locked in a single cell for 23 hours a day with two 30 minute exercise breaks in an individual pen, the size of a tennis court.

He left his cell on at least three occasions a day in order to empty his chamberpot, as there was no in-cell sanitation. However, if he rang his cell bell he could also leave his cell on other occasions during the day to use the toilet facilities if staff were available. He took a shower and collected a change of clothing once a week. A change of socks and underpants was provided twice a week. The applicant had frequent contact with prison officers and was visited in his cell each day by the Governor and at least weekly by a member of the Board of Visitors. He could have attended religious services on a weekly basis and in fact attended twice during the period of which complaint is made. A Roman catholic and an Anglican chaplain also visited the Unit frequently. The applicant saw and spoke to both of them. He was able to send and receive letters on the same basis as prisoners on normal location. He sent 33 letters in the relevant

period and received 32 replies.

His situation differed from those who were in the Segregation Unit serving a sentence of cellular confinement in that he was able to receive visits from friends and relatives. Between 25 August and 2 December 1989 the applicant received seven visits outside his cell of approximately 40 minutes each from his family. He received a further four visits from probation officers and two visits from his solicitor during this period. He had access to newspapers, books and his own radio. Prison records also disclose that he had a personal stereo in his cell from 12 October 1989 onwards. His cell would have contained a bed, mattress, chair and table.

A doctor visited the Segregation Unit each day. Had the applicant requested to see the doctor, that request would have been granted. The applicant was examined or seen by a medical officer five times during his location in the Unit. There is no record of any complaint that his physical or mental health was being adversely affected by the conditions of his imprisonment.

The applicant complained to the prison authorities about his removal from association with other prisoners and, in particular, the prohibition on talking to other inmates in the exercise yard.

On 18 January 1990 the Home Secretary replied to the applicant's petition in the following terms:

> "The Secretary of State has fully considered your petition but can find no grounds for taking any action in regard to it. Inmates on exercise at HMP Wandsworth are not prevented from talking to each other. However, it is not permitted to talk to inmates on other exercise yards, those in-cell on wings overlooking the exercise yard or those in-cell on punishment."

A more detailed response was provided by the Chairman of the prison's Board of Visitors in a letter to the applicant dated 24 January 1990:

> "I can assure you that at no time were you prevented from seeing the full panel of the Board of Visitors. I saw you most weeks while you were in the Segregation Unit and also did a member of my Board. When you raised any problem I dealt with it to your satisfaction at the time.
>
> You were not permitted to talk while on exercise for two reasons, namely because you were shouting to inmates on other floors and also for your own good to prevent you from speaking to two inmates who were trying to persuade you to act against good order and discipline.
>
> Prisoners are kept in the Segregation Unit while awaiting adjudications on a serious charge partly so that they are prevented from influencing witnesses and partly for their own safety..."

Guidance is issued by the Home Secretary to those responsible for day-to-day administration of the prison service about the segregation of prisoners. This guidance suggests that the fact and the reasons for a prisoner's segregation should be recorded on his personal record and on the adjudication sheet relating to dsiciplinary charges. However neither of these documents record the fact of the applicant's segregation or the reasons for it. The guidance further states that both Governors and Boards of Visitors should be particularly careful to consider whether segregation for a long period is continuing to serve the purpose for which it was originally intended and whether the risks of placing the prisoner on normal location have receded. While

there is no documentary evidence that this guidance was complied with, the applicant was visited by the Governor of the prison each day and by a member of the Board of Visitors on average twice each week during his stay in the Segregation Unit.

In April 1989 the Chief Inspector of Prisons visited Wandsworth. In his report of June 1989 he made various criticisms of the regime and conditions in that prison, including the fact that some officers were wearing unofficial badges and had slashed the peaks of their caps, which may have had racist overtones. In his concluding recommendations he commented that the regime at Wandworth "does not meet basic standards of humanity and propriety; urgent steps should be taken to improve the regime, which cannot be described as helping inmates to lead law-abiding and useful lives in custody".

A further report in part criticising the conditions at Wandsworth Prison was made in March 1991 by the European Committee for the Prevention of Torture and Inhuman or Degrading Treatment or Punishment. The Committee concluded "that the conditions of detentions ... were very poor ... There was a pernicious combination of overcrowding, inadequate regime activities, lack of integral sanitation and poor hygiene. In short, the overall environment in which the prisoners had to lead their lives amounted, in the CPT's opinion, to inhuman and degrading treatment."

The applicant modified his application to the Commission to embrace the criticisms made in these two reports and the parties provided the following further information on the subject:

The applicant was on his own in a cell measuring three by two metres with a high ceiling. (Prior to his segregation he had also been located in a single cell.) It had a window which the applicant could open. There was a reinforced cardboard table and chair and a metal framed bed, the bedding of which was taken out of the cell during the day. The cell was lit by an electric light which could be turned on and off by the applicant. There were cockroaches in the Segregation Unit and a pest control firm visited it twice to deal with them. The applicant was allowed to keep personal possessions in his cell such as writing materials, drawing books and photographs. He received the normal basic pay of £1-£1.10 per week for non-working prisoners and could place orders for personal items, such as batteries for his radio and stereo, at the canteen. He had full access to the prison complaints system.

The applicant alleges that the cell was cold, only being heated by a water pipe. Although he saw no racist insignia being worn by the prison officers with whom he came into contact, he claims to have felt racist contempt towards him in their general attitude by reason of his Asian looks. Following the report of the Chief Inspector of Prisons, prison staff were forbidden to wear any unofficial insignia in September 1989.

A medical officer was available at all times if needed. However access to the dentist was difficult due to Wandsworth's overcrowding at the time. It may be that the applicant was unable to get a dental appointment.

The Government informed the Commission that a considerable rebuilding scheme is underway at Wansworth Prison which will include in-cell toilets.

B. The relevant domestic law and practice

The treatment of convicted prisoners is governed by the Prison Rules of 1964, as amended, made under the Prison Act 1952. These Rules are supplemented by Standing Orders and Circular Instructions made by the Secretary of State which set out the detailed practice to be

followed in applying the Rules.

Disciplinary proceedings

Prison Rule 47 sets out prisoners' offences against discipline. These include assault, detaining a person against his will, intentionally endangering the health or personal safety of others, and attempting to commit any offence. Rule 48 provides (in part) that any disciplinary offence is to be charged as soon as possible, and in any event within 48 hours, and that each charge is to be inquired into, in the first instance by the Governor. Rule 50 sets out the punishments available to the Governor where he decides to deal with the matter himself. Rule 51 provides that where the Governor decides that, if the prisoner were found guilty, the punishments available to him would be inadequate given the nature and circumstances of the offence, he may refer the charge to the Board of Visitors.

Standing Order 3D provides that, where a prisoner is suspected of a serious offence against the criminal law, the Governor should adjourn the disciplinary charge after the initial hearing under Rule 48 and refer the matter to the police. If the Crown Prosecution Service subsequently decide not to prosecute, the Governor should proceed with the adjourned hearing and decide whether to refer the matter to the Board of Visitors.

Board of Visitors

The Board of Visitors of each prison is an independent body appointed by the Secretary of State under Prison Rule 92. Boards currently exercise a disciplinary function under Rule 52 in cases referred to them by the Governor. They may hold hearings on disciplinary charges and may grant adjournments and grant legal representation to prisoners appearing before them. On finding a prisoner guilty they may impose a range of punishments. Boards of Visitors have other functions under Prison Rules 92 to 97 which include satisfying themselves as to the treatment of prisoners, hearing any complaint or request a prisoner wishes to make and enquiring into any report made to them that a prisoner's mental or physical health is likely to be injuriously affected by any conditions of his imprisonment.

Segregation

The Governor has power to segregate a prisoner pursuant to Prison Rule 48(2). This Rule provides: "A prisoner who is to be charged with an offence against discipline may be kept apart from other prisoners pending adjudication". This Rule is supplemented by Circular Instruction 25/1989 which states that segregation pending adjudication under Prison Rule 48(2) is only appropriate up until the Governor's initial hearing. After that time, if segregation is necessary, it must be authorised under Prison Rule 43. The Circular Instruction provides that "Governors and Board Members should be particularly careful to consider whether segregation for a long period, for example pending a Board of Visitors' hearing, is continuing to serve the purpose for which it was originally intended and whether the risks of placing the prisoner on normal location (of collusion or intimidation for instance), have receded." This advice is reinforced by paragraph 4.16 of The Manual on Adjudications issued to Governors and Boards of Visitors which advises Boards to consider whether continued segregation is necessary on adjourning a hearing and reminds those involved that the decision to continue segregation should be noted on both the record of the adjudication and the prisoner's personal record.

The Governor also has a power to segregate prisoners pursuant to Prison Rule 43 which at the relevant time provided as follows:

"(1) Where it appears desirable, for the maintenance of good order or discipline or in his own interests, that a prisoner should not associate with other prisoners, either generally or for particular purposes, the Governor may arrange for the prisoner's removal from association accordingly.

(2) A prisoner shall not be removed under this Rule for a period of more than 24 hours without the authority of a member of the Board of Visitors, or of the Secretary of State. An authority given under this paragraph shall be for a period not exceeding one month, but may be renewed from month to month.

(3) The Governor may arrange at his discretion for such a prisoner as aforesaid to resume association with other prisoners, and shall do so if in any case the medical officer so advises on medical grounds."

During the period of the applicant's segregation, Prison Rule 43 was supplemented by Circular Instruction 15/1974. This Circular Instruction makes it clear at paragraph 8 that authority for segregation for longer than 24 hours must be obtained from a member of the Board of Visitors or the Secretary of State. Telephone authorisation is acceptable but written confirmation should be obtained within a further 24 hours. A copy of the authorisation is to be placed with the prisoner's personal record which should be annotated with the fact of and reasons for his segregation. The Circular Instruction further states: "It is important that an adequate description of the reasons for segregation should be given. It is not sufficient merely to record ... 'for good order and discipline'. Some account of the circumstances is required." Paragraph 9 of the Circular Instruction provides that continued authority for segregation under Rule 43 beyond one month should be recorded on the prisoner's personal record and countersigned by a member of the Board of Visitors.

The Government concede that there was some uncertainty as to which Prison Rule was relied upon to justify the applicant's period of segregation. The formal authorisations indicate that Rule 43 was relied on, but the correspondence from the Governor and Board of Visitors suggest that they had Rule 48 in mind. The Government accept that a more detailed record should have been kept of the reasons for segregating the applicant at the relevant time and that the decisions to segregate him, whilst justified on the facts, may have been procedurally flawed.

Association with other prisoners

Prison Rule 27 provides that, subject to specified exceptions, all prisoners not engaged in outdoor work are to be given one hour's exercise each day. The nature of the facilities available for exercise varies between one institution and another and each prison has internal regulations about the taking of exercise. There is no general prohibition on speaking during exercise. Local rules at HM Prison Wandsworth may have been interpreted in the past as prohibiting those exercising from speaking to those in other exercise yards. The Area Manager for that prison has now made it clear that inmates may speak to each other on exercise (whether or not in the same yard) provided their behaviour is not disruptive or abusive.

Remedies available to prisoners

Prisoners with grievances about the place of their detention or its conditions have various remedies available to them. They may complain to the Governor or the Board of Visitors within the prison both of whom have a statutory duty to consider speedily requests and complaints made to them. At the relevant time, prisoners could also

petition the Secretary of State directly or enlist the aid of their Member of Parliament. In appropriate cases, prisoners can also seek legal redress in the United Kingdom courts. Prisoners are entitled to obtain advice from independent lawyers. Free legal aid is available for litigation, subject to the legal aid authorities being satisfied as to the applicant's means and the merits of his case. Legal redress may be sought in an action in tort or by way of judicial review.

COMPLAINTS

The applicant's complaint is that segregation of the kind he has experienced constitutes inhuman and degrading treatment contrary to Article 3 of the Convention. He contends that the refusal to allow him to associate or communicate with other inmates was in breach of this provision. This complaint under Article 3 was modified during the proceedings before the Commission to include his general conditions of detention. He also complains that his treatment by the prison disciplinary system was in breach of Article 6 para. 1 of the Convention. This was borne out by the allegedly extensive delay in the proceedings without any evidence being brought against him ultimately. Finally he complains that his removal from association with other prisoners was in breach of Article 11 of the Convention.

PROCEEDINGS BEFORE THE COMMISSION

The application was introduced on 8 January 1990 and registered on 5 December 1990. After a preliminary examination of the case by the Rapporteur, the Commission considered the admissibility of the application on 2 September 1991. It decided, pursuant to Rule 48 para. 2 (b) of the Rules of Procedure, to give notice of the application to the respondent Government and to invite the parties to submit their written observations on admissibility and merits. The Government's observations were submitted on 7 February 1992, after two extensions of the time limit fixed for this purpose. The Commission granted the applicant legal aid on 21 February 1992. The applicant replied on 29 April 1992. In his reply the applicant abandoned a complaint that the disciplinary proceedings were in breach of Article 6 para. 3 (b) of the Convention.

On 31 August 1992 the Commission decided to hold a hearing of the parties on the applicant's complaint under Article 3 of the Convention. On 20 January 1993 the applicant's representative submitted a pre-hearing brief and documents. The hearing was held on 16 February 1993. The applicant was represented by Mr.T Bancroft, Solicitor. The Government were represented by their Agent, Mrs.D. Brookes, Mr.J. Eadie, Counsel, and Ms.R. Davies and Mr.E. Tullett, as advisers.

THE LAW

1. The applicant's principal complaint is that his removal from association with other prisoners for 14 weeks pending disciplinary proceedings against him constituted a violation of Article 3 (Art. 3) of the Convention, which provides as follows:

> "No one shall be subjected to torture or to inhuman or degrading treatment or punishment."

The applicant concedes that the prison authorities did not act improperly by segregating him initially and in referring his alleged involvement in the hostage-taking incident to the police. However once the police had declined to prosecute the applicant, it was not right to then pursue disciplinary proceedings, given that the burden of proof would have been the same for either a criminal or disciplinary prosecution. He submits that the Board of Visitors are not competent to deal with these kinds of serious allegations. In the circumstances

the applicant claims that the Board of Visitors should have dismissed the disciplinary charge against him on or before 4 October 1989 and that the extensive delay for another two months was unjustified.

During that time the applicant alleges that he was segregated from other prisoners without the requisite legal authority, in total disregard of the Secretary of State's guidelines and the applicant's human rights. If those guidelines had been followed the deprivation suffered by the applicant would not have happened. He contends that being left in a cell 23 hours a day with a chamberpot, and having to empty it, is in itself degrading treatment contrary to Article 3 (Art. 3) of the Convention. Association with other prisoners, friends and equals cannot be compared to association with prison professionals. He claims that the conditions of his segregation taken as a whole, as well as the poor general conditions in Wandsworth Prison, caused him very considerable distress and suffering which he managed to bear with fortitude without any significant damage to his physical and mental health. He contends that he would have had no prospect of successfully suing the prison authorities in negligence or applying for judicial review, and without such prospects of success legal aid would not have been forthcoming. Finally, he submits that his segregation for so long was unjustifiable, for on the facts less strong measures would have been appropriate, such as transfer to another prison. Overall, the treatment he received whilst segregated was inhuman and degrading contrary to Article 3 (Art. 3) of the Convention.

The Government refute the applicant's claims. First they contend that the applicant has not exhausted domestic remedies by way of an application for judicial review. Secondly they submit that the applicant's segregation did not cause him suffering contrary to Article 3 (Art. 3) of the Convention. Having regard to the justifiable circumstances which led to his removal from association with other prisoners, the human contact he had with professionnal advisers, the Board of Visitors and his family, the many letters he wrote and received, the access he had to books, newspapers radio and stereo, the absence of any evidence that his health suffered in any way, the Government take the view that the applicant's allegations are without foundation. They also state that there is no evidence of any racist discrimination against the applicant.

The Commission does not find it necessary to decide whether the applicant has exhausted domestic remedies in accordance with Article 26 (Art. 26) of the Convention, as the applicant's complaints are otherwise inadmissible for the reasons elaborated below.

The Commission refers to its case-law that the segregation of a prisoner from the prison community does not in itself constitute a form of inhuman or degrading treatment. Whilst prolonged removal from association with others is undesirable, whether such a measure falls within the ambit of Article 3 (Art. 3) of the Convention depends on the particular conditions of its application, including its stringency, duration and purpose, as well as its effects on the person concerned (No. 10263/83, R. v. Denmark, Dec. 11.3.85, D.R. 41 p. 149, at p. 153 with further references).

The Court has held that "ill-treatment must attain a minimum level of severity if it is to fall within the scope of Article 3 (Art. 3). The assessment of this minimum is, in the nature of things, relative ..." (Eur. Court H.R., Ireland v. the United Kingdom judgment of 18 January 1978, Series A no. 25, p. 65, para. 164). As regards degrading treatment the Court was of the view that "in order for a punishment to be 'degrading' and in breach of Article 3 (Art. 3), the humiliation or debasement involved must attain a particular level and must in any event be other than the usual element of humiliation" associated with imprisonment after a criminal conviction. An examination of such matters, being relative, "depends on all the circumstances of the case and, in particular, on the nature and context

of the punishment itself and the manner and method of its execution" (Eur. Court H.R., Tyrer judgment of 25 April 1978, Series A no. 26, p. 15, para. 30). Thus the gravity and absolute prohibition on ill-treatment in breach of Article 3 (Art. 3) have led the Convention organs to set the Article 3 threshold at very serious and severe ill-treatment.

The Commission notes that the applicant was prevented from communicating with other prisoners pending investigation of serious disciplinary charges against him for attempting to kidnap a probation officer. Even though the charges were subsequently withdrawn, there is nothing in the case-file to suggest that an investigation was not necessary or that the purpose behind the applicant's removal from association was not legitimate. The applicant himself concedes this. Moreover the applicant does not allege that his segregation had any effect on his physical or mental health. His segregation did not amount to complete sensory and social isolation which could have undermined his personality. He received several visits from relatives, the prison chaplains, his solicitor and probation officers, as well as regularly daily contact with the prison officers. He could also read books and newspapers, listen to the radio and his personal stereo, and write and receive letters. There is no evidence to substantiate his feeling that the prison officers were dealing with him in a racially discriminatory manner.

The Commission also notes that the general conditions of detention at Wandsworth Prison were strongly criticised by the Government's own Chief Inspector of Prisons and by the European Committee for the Prevention of Torture and Inhuman or Degrading Treatment or Punishment. The applicant subsequently modified his complaint under Article 3 (Art. 3) of the Convention to encompass these criticisms. The Commission does not doubt that the conditions in Wandsworth Prison, involving overcrowding, a lack of activity, a lack of integral sanitations and poor hygiene, were extremely unsatisfactory and that they were in urgent need of improvement. The Government recognise this and informed the Commission of a rebuilding scheme to include in-cell sanitation. This is to be welcomed. However, the Commission is only competent to deal with the case it has before it, not the general situation of prisoners at Wandsworth. The applicant in the present case cannot complain of overcrowding because throughout his stay at Wandsworth he was in a single cell. This fact must have reduced the difficulties created by the lack of integral sanitation in the cell. Moreover the poor general conditions are not the basis of the applicant's main complaint about his removal from association from other prisoners.

Having regard to the circumstances of the present case as a whole, the Commission finds that the treatment the applicant received during the 14 weeks in which he was removed from association with other prisoners did not amount to the severe ill-treatment proscribed by Article 3 (Art. 3) of the Convention.

It follows that this part of the application is manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

2. The applicant next complains of a breach of Article 6 para. 1 (Art. 6-1) of the Convention, the relevant part of which provides as follows:

> "1. In the determination ... of any criminal charge against him, everyone is entitled to a fair and public hearing within a reasonable time by an independent and impartial tribunal established by law ..."

He submits that once it was decided not to prosecute him in the

criminal courts, on or about 23 September 1989, all proceedings against him should have been immediately discontinued. The fact that they were not discontinued for over two months constitutes extensive delay within the meaning of Article 6 (Art. 6). The argument that the matter was proceeding before the Board of Visitors between 23 September 1989 and 5 December 1989 is flawed since in this particular instance the Board of Visitors was not a competent court within the meaning of Article 6 (Art. 6).

The Commission did not seek the Government's observations on this aspect of the applicant's claim, but the Government anyway deny that any issue arises under Article 6 para. 1 (Art. 6-1) of the Convention in the present case.

The Commission recalls the constant case-law of the Convention organs that in principle Article 6 (Art. 6) of the Convention does not apply to disciplinary proceedings, unless, having regard to the autonomy of the concept "criminal charge", a disciplinary offence belongs, by its very nature and the degree of severity of the penalty, to the criminal sphere (Eur. Court H.R., Engel and Others judgment of 8 June 1976, Series A no. 22, pp. 33-35, paras. 80-82, and Campbell and Fell judgment of 28 June 1984, Series A no. 80, pp. 34-38, paras. 66-73).

The Commission notes that the circumstances which gave rise to the disciplinary proceedings in the present case - allegations of the applicant's involvement in taking a probation officer hostage - could have been the subject of both criminal and prison disciplinary proceedings. Criminal proceedings were not initiated by the police, but the applicant risked a heavy disciplinary penalty of substantial loss of remission of his sentence if the disciplinary case had been proved against him. It is, therefore, arguable in the circumstances that Article 6 para. 1 (Art. 6-1) of the Convention was applicable to the proceedings before the Board of Visitors as, in substance, the disciplinary charge against the applicant amounted to a criminal charge within the meaning of this Convention provision.

As to compliance with Article 6 para. 1 (Art. 6-1) of the Convention, the applicant's principal complaint concerns the length of the disciplinary proceedings against him. However, the Commission considers that the 14 week period in which the police and prison authorities investigated the case consecutively, but then discontinued it, was not unduly lengthy in the circumstances. The Commission also notes that it was not until early October 1989 that the applicant applied for and was granted legal representation for the disciplinary proceedings. Thereafter the legal representatives of both parties, the applicant and the prison Governor, needed time to take instructions. The Commission concludes that the present case discloses no appearance of a violation of Article 6 (Art. 6) of the Convention.

It follows that this part of the application is also manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

3. Finally, the applicant complains that his removal from association with other prisoners constituted a breach of Article 11 (Art. 11) of the Convention, the relevant part of which reads as follows:

> "1. Everyone has the right to freedom of peaceful assembly and to freedom of association with others, including the right to form and join trade unions for the protection of his interests.
>
> 2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society ... for the prevention of disorder or

crime ..."

He contends that if the authorities were concerned that his association with other prisoners might have hampered the investigation of evidence for the disciplinary proceedings, then he should have been transferred to another prison where association would have been possible. His removal from association had no justification under the second paragraph of Article 11 (Art. 11).

The Commission did not seek the Government's observations on this aspect of the applicant's claim, but the Government submit that the applicant's complaints about association with other prisoners do not fall within the ambit of Article 11 (Art. 11) of the Convention.

The Commission refers to the language of Article 11 (Art. 11) which suggests that the concept of freedom of association, of which the right to form and join trade unions is a special aspect, is concerned with the right to form or be affiliated with a group or organisation pursuing particular aims. It does not concern the right of prisoners to share the company of other prisoners or to "associate" with other prisoners in this sense (No. 8317/78, McFeeley and Others v. the United Kingdom, D.R. 20 p. 44, at pp. 97-98, paras. 112-115). Consequently the Commission agrees with the Government and concludes that this complaint must be rejected under Article 27 para. 2 (Art. 27-2) as being incompatible ratione materiae with the provisions of the Convention.

For these reasons, the Commission by a majority

DECLARES THE APPLICATION INADMISSIBLE.

Secretary to the Commission — Acting President of the Commission

(H.C. KRÜGER) — (S. TRECHSEL)